Javed In Jc vs The State Nct Of Delhi on 15 October, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2400/2025
JAVED IN JC
Through: Mr
Ch

versus

THE STATE NCT OF DELHI .....Responden
Through: Mr. Tarang Srivastav, APP.

CORAM:
HON'BLE MR. JUSTICE RAVINDER DUDEJA
ORDER

% 15.10.2025

1. This is an application filed on behalf of petitioner under Section 483 of BNSS, 2023 seeking regular bail in Case FIR No.89/2024 registered under Section 420/120B/34 of IPC at PS-Cyber Police Station West.

2. On 08.09.2023, the complainant received a video call from a woman showing obscene content, who coaxed him into exposing himself, after which he was threatened by individuals impersonating Vikram Goswami of the Delhi Police and Bhawani Singh of YouTube, along with others. Believing the threats that his phone was under surveillance and the woman was a minor, the complainant was coerced into obtaining a new number and uninstalling WhatsApp and subsequently extorted to pay approximately Rs. 14 lakhs in multiple transactions to bank accounts operated by the fraudsters. The perpetrators created a fake suicide scenario to pressure him This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/10/2025 at 22:45:45 into further payments and assured refunds to manipulate compliance. Investigation revealed coordinated involvement of multiple persons in impersonation, blackmail, and fraud through online and banking channels.

3. Learned counsel for the applicant submits that the trial court failed to appreciate that the Supreme Court, in a catena of judgments, has consistently held that the right to life and personal liberty enshrined under Article 21 of the Constitution of India is the most precious of all fundamental rights and must not be curtailed except when absolutely imperative. It is further submitted that the law requires that before making an arrest, the police must record specific reasons showing necessity under Section 41(1)(b) of the Code of Criminal Procedure, and where arrest is not required, a notice under Section 41A Cr.P.C. should be issued. It is submitted that in the present case, there is no material necessitating custodial interrogation of the petitioner, nor is there any

apprehension of tampering with evidence or absconding.

4. Furthermore, it is submitted that for section 34 IPC to be applied to the applicant, common intention should be there, but no evidence as been put on record to establish this. Such contradictions render the prosecution version doubtful and indicate that the petitioner was illegally detained and wrongly sent to judicial custody. It is lastly submitted that the petitioner is a businessman and cement dealer who regularly receives payments through online modes, and any payment credited to his account was bona fide believed to be from a customer. It is further submitted that the applicant has not been named in the FIR, and no notice under Section 41-A Cr.P.C. or Section 35(3) to (6) of the BNSS was served upon him prior to his arrest. Furthermore, it is submitted that co-accused Abid, Deva, and Kanwar Lal This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/10/2025 at 22:45:45 were issued bailable warrants on 08.10.2025 for non-appearance, and while Abid is on bail, it was Abid who had offered to transfer money into the petitioner's account in exchange for a 5% commission, to which the petitioner had agreed.

5. Learned APP for the State submits that the complainant was cheated by individuals impersonating police officials and YouTube representatives, who extorted approximately Rs. 14 lakhs through multiple online transactions under the pretext of deleting obscene videos. Investigation revealed that Rs. 6.5 lakhs of the cheated amount were transferred to Raju Kumar's account and subsequently routed to two PNB accounts in the name of Dulot Enterprises, owned and operated by the applicant Javed, who withdrew the funds through self-cheques linked to his mobile number.

6. It was further found that Javed, a building material supplier, admitted that his associate Abid conducted transactions through his accounts for a 5% commission, and that there were suspicious transactions of over Rs. 74 lakhs in Javed's accounts and Rs. 56 lakhs in his wife Sabila's account within three to four months, indicating active involvement in laundering the cheated money. Out of the total ten accused, three are in custody, including the applicant, while Abid, who received Rs. 55,000 in his account, joined the investigation and is currently on police bail. Learned APP opposed the grant of bail, emphasizing the applicant's central role in the fraudulent transactions and money laundering activities.

7. Having heard the submissions of the parties and upon perusal of the record, it is evident that the petitioner, along with his associates, were involved in a sophisticated cyber fraud operation in which the complainant was duped of approximately Rs. 14 lakhs by individuals impersonating This is a digitally signed order.

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the petitioner and his wife, indicating active involvement in receiving and laundering the proceeds of the fraudulent transactions. The petitioner deliberately avoided joining the investigation despite being served notice under Section 35(3) of BNSS, 2023, and was apprehended only after technical surveillance and a raid by the police, demonstrating a conscious attempt to evade law enforcement and obstruct the investigation.

8. It is further observed that the petitioner facilitated these fraudulent transactions by allowing his bank accounts to be used by his associate Abid for transferring funds from victims in exchange for a commission and actively withdrew and transferred amounts to multiple accounts in a manner consistent with money laundering. The petitioner has not provided any valid or genuine explanation for such high-value transactions. The scale, sophistication, and repeated pattern of the transactions indicate premeditation and organized criminal conduct, which cannot be lightly ignored in view of the potential threat posed to public safety and the increasing prevalence of cybercrime in recent years.

9. Cyber offences, particularly involving impersonation and online extortion, have been recognized by the courts as serious crimes necessitating stringent measures. It is befitting to mention that while adjudicating bail pleas, particularly in cases concerning cybercrimes and online fraud, a meticulous evaluation of several pivotal factors is required, including the inherent gravity and seriousness of the offence and its potential societal ramifications. Cybercrimes and online frauds pose a significant threat as This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/10/2025 at 22:45:45 they erode public confidence in digital financial transaction platforms, imperil numerous unsuspecting citizens, and extend far beyond pecuniary loss to undermine trust, security, and national progress.

10. Considering the deliberate non-cooperation of the petitioner during investigation, the amount involved, the absence of any plausible explanation for high-value transactions, and the organized manner in which the offences were committed, it is clear that releasing the petitioner on bail at this stage may not be appropriate.

11. In view of the above, no case is made out for grant of regular bail to the petitioner. The application accordingly stands dismissed.

12. However, it is clarified that nothing stated herein shall tantamount to be an expression on the merits of the case.

RAVINDER DUDEJA, J OCTOBER 15, 2025/na This is a digitally signed order.

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